

24CHCV02811 24CHCV02811

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DEFENDANT FANG

LI'S MOTION TO QUASH SERVICE OF SUMMONS

Motion filed on June 2, 2026.

MOVING PARTY: Fang Li

RESPONDING PARTY: Zhuojun Yu

NOTICE: OK.

RELIEF REQUESTED: An order quashing service of the Summons and Complaint on Defendant Fang Li.

RULING: Granted. Defendant Fang Li's motion to quash service of summons is granted as to the May 4, 2026 attempted service. The Court makes no determination concerning the validity of the purported July 15, 2026 service. Plaintiff is ordered to file, within 5 court days, any proof of service relating to the purported July 15, 2026 substituted service of Defendant Fang Li.

BACKGROUND

On August 2, 2024, Plaintiff Zhuojun Yu (Plaintiff) filed the Complaint against Defendants Jiao Du, Fang Li (Defendant), Mei Bai, and Does 1 through 25.

On June 2, 2026, Defendant filed the present motion to quash service of summons pursuant to Code of Civil Procedure section 418.10, supported by her declaration and Exhibit 1. Plaintiff filed an opposition on August 12, 2026. No reply was filed.

DISCUSSION

Code of Civil Procedure section 418.10, subdivision (a)(1) permits a defendant to move to quash service of summons on the ground of lack of jurisdiction over the defendant.

When a defendant challenges the validity of service by moving to quash, “the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Floveyor International, Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 793.) The plaintiff must establish the jurisdictional criteria by a preponderance of the evidence. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.) Jurisdictional facts must be proved by admissible evidence, which generally requires documentary evidence and declarations by competent witnesses. (Rivelli v. Hemm (2021) 67 Cal.App.5th 380, 402.)

Code of Civil Procedure section 415.20, subdivision (b) provides that if the summons and complaint cannot with reasonable diligence be personally delivered, substituted service may be made by leaving the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address in the presence of a competent member of the household or a person apparently in charge, at least 18 years of age, who is informed of the contents, and thereafter mailing a copy to the person at the place where the documents were left.

Here, Defendant's motion challenges an attempted service on May 4, 2026 at the offices of JC Pacific Corp. Defendant declares that she was not personally served, that JC Pacific Corp. is not her residence, usual place of abode, or usual place of business, and that she was not present there on May

4, 2026. (Li Decl., ¶¶ 2-4.) Plaintiff's opposition, however, identifies July 15, 2026 as the date of the substituted service on which Plaintiff relies and expressly states that the May 4 event occurred on "a different date from the actual service on July 15, 2026." (Opp. at pp. 2-3, 7-9.) Thus, Defendant's motion challenges the May 4 service attempt, while Plaintiff relies on a separate purported service occurring on July 15, 2026.

Plaintiff contends that its proof of service establishes substituted service on July 15, 2026 by leaving the summons and complaint at JC Pacific Corp. and thereafter mailing copies to Defendant at that address. (Opp. at p. 8.) No such proof of service is attached to the opposition or otherwise appears in the record provided to the Court. Plaintiff also submits no declaration from the process server establishing the circumstances of the purported July 15 service. The Court therefore does not determine the validity of the purported July 15, 2026 service on the present record.

The Court does not reach the parties' remaining arguments concerning whether JC Pacific Corp. constitutes Defendant's usual place of business or whether refusal by office personnel would defeat otherwise proper substituted service. Those issues do not affect the disposition on the present record.

CONCLUSION

Defendant's motion to quash the purported May 4, 2026 service is granted. The Court makes no determination concerning the purported July 15, 2026 service. Plaintiff is ordered, within 5 court days, to file any proof of service upon which Plaintiff relies concerning the purported July 15, 2026 substituted service of Defendant Fang Li.